

NEW YORK OWNER-BUILDER PERMIT KIT

Find your permit office · File the CE-200 · Build to the 2025 Uniform Code

Project Address: _____

City / Town / Village: _____

County: _____

Permit Office (Tier): _____

Owner-Builder: _____

Permit Application Date: _____

Outside New York City only — the five boroughs keep their own code (Exec. Law § 383(1)(c)).

Your permit office is your town, village or city; your county; or the Department of State.

The code is the same on all three — NY.1 shows you how to tell which one is yours.

Every New York statute, rule and requirement in this kit
is cited on the page it appears on — verified September 2026.

BUILD YOUR HOUSE

build-your-house.com

First Edition — 2026

How to Use This Kit

Five working documents, from “which government issues my permit?” to the certificate of occupancy.

New York has **one** Uniform Fire Prevention and Building Code and **one** Energy Code, in force on every parcel in the state outside New York City: no county where the code does not apply, no opt-out that switches it off, no acreage below which it stops. The five boroughs keep their own code under Executive Law § 383(1)(c), and nothing in this kit is about them.

What New York does instead is hand the *enforcement* of that code down a ladder. Executive Law § 381(2) makes your town, village or city the permit office by default; a local government that declines the job passes it to the county; a county that declines passes it to the Department of State. **Same code on every rung. Different office, different fee, different local law, different inspector.** The first thing to establish is which rung you are on.

Then three things catch almost everybody, and none is in the code book. **The permit is gated by a workers' compensation form** (General Municipal Law § 125) — for an owner-builder, a job-specific Form CE-200 filed as a homeowner. **The electrical inspector is whoever your office has approved** (19 NYCRR § 1203.2(e)(4)). And **the gas question has a court-set clock** that, on the day this kit was assembled, runs out on 31 December 2026.

WHAT IS IN THE KIT

The five documents

	Document	What it does for you
NY.1	Who Enforces Your House	The three-rung ladder and how to find your rung; why there is no owner-builder exemption to claim; the CE-200 permit gate; the 2025 code editions; and the dated all-electric status box. Read this first.
NY.2	Permit Application Checklist	What the state rule entitles the reviewer to demand, the 1,500 sq ft stamped-plan rule, the numbers your office writes into Table R301.2, New York's own energy values, and the septic and well rules that fix where the house can sit.
NY.3	Inspection Sequence	The eleven inspection elements the state rule requires, the electrical special-inspection track, the 30-day order-to-remedy clock, the appeal you do have, and the certificate of occupancy — with a log for every visit.
NY.4	Where to File Directory	How to identify your permit office on the ladder, the county health department for septic and wells, the two regional overlays that reach one house, the county license laws, and a page to record every office you confirmed.
NY.5	Forms & Documents Index	Each document you will meet, named as the agency names it — plus what may need no permit, what New York never asks for, and the two things you may not do yourself.

HOW TO USE IT

- **Start with NY.1.** Its first section settles which government issues your permit. Nothing else in the kit sequences correctly until you know that, and the answer is a clerk's question away — you do not have to guess at it.
- **Get the CE-200 before you walk in.** No city, town or village may issue a building permit without carrier proof of workers' compensation coverage or an affidavit that you have engaged no employees. The affidavit is Form CE-200, applied for online as a homeowner, and it is job-specific — one per permit.
- **Ask for the approved electrical inspection agency list before you buy wire.** Your office may accept an electrical inspection only from an agency it has approved, and there is no state list. The name goes on the statement of special inspections in your application.
- **If you are planning gas or propane, read the dated box in NY.1 before you file.** The trigger is the date a substantially complete application is submitted, not the date you occupy. A complete application in before the suspension lifts is outside the prohibition.
- **Keep NY.3 on the job** and record every inspection as it happens. The certificate of occupancy cannot issue until the office holds the electrical agency's final report and the written blower-door result, and those two documents come from people you hired, not from the office.

How these facts were checked — and what this is not

Every New York claim here was read against its primary source in September 2026 — the Executive Law and the other consolidated laws, the Department of State's own rule-text PDFs for 19 NYCRR, the 2025 Residential and Energy Codes in the ICC's free viewer, the Health Department's Appendices 75-A and 5-B, the Workers' Compensation Board's own forms guidance, and the federal court docket that governs the all-electric date — and is cited where it appears. Where the answer genuinely depends on your municipality, the kit says so and gives you a line to write down what you confirmed. Not legal advice.